

NFM&J, LLC
THE FACILITIES GROUP

**EMPLOYMENT
DOCUMENTATION
FOR**

Timothy Semenza

April 5, 2024

**NFM&J, LLC - THE FACILITIES GROUP
EMPLOYMENT TERM SHEET**

Timothy Semenza

Effective Date Date of Execution by Timothy Semenza

Date of Hire April 22, 2024

Title Sr Manager of Proposal Management

Status Employee-at-will.

Documentation Noncompetition, Non-Solicitation and Confidentiality Agreement by and between NFM&J, LLC- The Facilities Group (the “**Company**”) and Timothy Semenza, dated April 5, 2024, and attached hereto as **Exhibit A** (the “**NNC Agreement**”).

Duties Overall responsibility and authority for service and support of Proposal Management, subject to the direction of the Company’s Managers; general responsibility for supporting the Company’s efforts in meeting its strategic objectives.

Location New Jersey

Compensation **Base Salary** - \$160,000.00 per year, paid Bi-weekly in accordance with the Company’s policies and practices in effect from time to time and subject to withholding of all federal, state, and local taxes.

Bonus - 5% of base, based on company and individual performance, prorated in the first year of employment.

Vacation - 3 vacation weeks per year, pro-rated in the first year of employment.

Benefits - All benefits generally afforded to the Company’s employees, plus reimbursement of all Company-related business expenses in accordance with the Company’s policies and practices in effect from time to time and subject to then-current IRS regulations.

Agreed and accepted as of this ____ day of _____, 2024.

NFM&J, LLC. - The Facilities Group

By: Jeff Hawkins
Jeff Hawkins – **Chief Sales Officer**

Timothy Semenza
Timothy Semenza - **Individually**

EXHIBIT A

**NONCOMPETITION,
NON-SOLICITATION,
AND
CONFIDENTIALITY AGREEMENT**

**NFM&J, LLC - THE FACILITIES GROUP
NONCOMPETITION, NON-SOLICITATION,
AND
CONFIDENTIALITY AGREEMENT**

THIS NONCOMPETITION, NON-SOLICITATION, AND CONFIDENTIALITY AGREEMENT (the “*Agreement*”) is made as of April 5, 2024 (the “*Effective Date*”), by and between NFM&J, LLC- The Facilities Group a Florida limited liability company (the “*Company*”), and Timothy Semenza, an individual resident of the State of New Jersey (the “*Employee*”).

BACKGROUND

The Company will continue to engage in the business of providing janitorial, building maintenance, security, and related services (the “*Business*”).

In consideration of at-will employment or continued at-will employment with the Company, the Parties enter into this Agreement.

The Parties agree that Employee has been, and/or will be, in possession of certain confidential information and trade secrets as defined in Florida Statute §688.002 relating to the Business, including, but not limited to, customer and supplier lists, and other related information, which provides the Company with a competitive advantage and is vital to the Company’s success.

The Company desires to protect and maintain the confidentiality of its valuable confidential information and trade secrets, the disclosure of which to its competitors or the use of which to compete with the Business would be highly detrimental.

The Employee has had, and/or will have, on behalf of the Company, close and material relationships with the Company’s customers and suppliers, which relationships have substantial value to the Company.

The Company desires to protect its relationships with its customers and suppliers, the use or appropriation of which by or on behalf of a competitor would be highly detrimental.

The Employee, in consideration of his/her employment by the Company, hereby acknowledges the Company’s rights and substantial and legitimate business interests in and to its trade secrets and confidential information, the importance of the Company’s relationships with its customers and suppliers, and the Company’s desire to protect such rights and substantial and legitimate business interests through this Agreement.

In consideration of the Employee’s employment and/or continued employment by the Company, the foregoing premises, the parties’ mutual agreements contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Definitions:

(a) “*Affiliate*” means any person or entity which controls, is controlled by, or is under common control with, the Company.

(b) “*Company Information*” means Confidential Information and Trade Secrets (as hereinafter defined), regardless of whether it was learned, developed, conceived, acquired, made, produced or prepared by Employee after

the Effective Date or prior thereto while Employee was employed by the Predecessor. Company Information does not include data or information that:

- (1) has been voluntarily disclosed to the general public by the Company,
- (2) has been independently developed and disclosed to the general public by others,
- (3) otherwise enters the public domain through lawful means, or
- (4) has been disclosed to the Company or its Affiliates by a third party and which the Company and/or its Affiliates are not obligated to treat as confidential.

(c) “**Competing Business**” means any business or enterprise of whatever form which, either directly or indirectly, engages in any Business of the Company.

(d) “**Competitive Business Activities**” means holding any position, performing any duties, or engaging in any activities for or on behalf of a Competing Business that:

- (1) are the same as or substantially similar to those which the Employee held, performed, or engaged in during his/her employment with the Company,
- (2) are in the same segment or segments of the Business in which the Employee performed services for or on behalf of the Company, and/or
- (2) otherwise materially advance or support any Competing Business.

(e) “**Confidential Information**” means:

- (1) data and information belonging or relating to the Company or any of its Affiliates (which does not meet the statutory requirements for trade secret protection), which is or has been disclosed to or created by the Employee or of which the Employee became or becomes aware as a consequence of or through his/her services as an employee of the Company (or the Predecessor) and is not generally known to the Company’s competitors, and
- (2) information or data relating to the customers or suppliers of the Company or any of its Affiliates, which is or has been disclosed to the Employee or of which the Employee became or becomes aware as a consequence of or through his/her service as an employee of the Company (or the Predecessor), and is not generally known to the Company’s competitors, including, but not limited to:
 - i. the identity of any of the customers or suppliers,
 - ii. information relating to the customer’s or supplier’s addresses (business or personal), place of business, telephone numbers, cell phone numbers and e-mail addresses,
 - iii. information related to the customer’s or supplier’s contacts,
 - iv. information related to the customer’s or supplier’s relationship with the Company and its products, and
 - v. billing and/or credit card information pertaining to any customer or supplier.

(f) “**Materials**” mean all documents and tangible and intangible materials, including computer programs and data, provided to or obtained by the Employee in the course of his/her employment by the Company (or the Predecessor).

(g) “**Territory**” means all cities, counties, states, and other geographic regions in which the Company is conducting Business as of the date on which Employee engages or attempts to engage in any Competitive Business Activities prohibited by this Agreement.

(h) “**Trade Secrets**” means data or information meeting the applicable statutory criteria for trade secret protection, and as long as those criteria are met, Trade Secrets include, but are not limited to, technical and non-technical data related to the patterns, designs, compilations, programs, inventions, methods, techniques, drawings, processes, finances, profit margins, cost and pricing information, sales information, specialized customer requirements

and preferences, names, addresses and other information regarding actual or potential customers, distributors, and suppliers, customer proposals, bids and quotes, bid procedures and strategies, existing and future products and services, business plans and forecasts, computer programs, codes and databases, and employees of the Company or its Affiliates, and all physical embodiments of the foregoing. The parties understand and agree that data or information that does not meet the applicable statutory criteria for trade secret protection may nevertheless constitute Confidential Information for purposes of this Agreement.

2. No Employment or Service Contract: This Agreement does not create an employment contract or a service contract between the Company and the Employee for any period or future term.

3. Contracts or Other Agreements with Former Employer or Business:

(a) The Employee hereby represents and warrants to the Company that he/she is neither a party to nor bound by any employment or consulting agreement or similar document with a former employer or any business with which the Employee has been associated, which prohibits or in any restricts the Employee from:

- (1) competing with, or in any way participating in a business which competes with, any of the Employee's former employers or businesses,
- (2) soliciting personnel of any such former employer or business to leave such former employer's employment or business, or
- (3) soliciting customers or suppliers of such former employer or business to engage in another business.

(b) The Employee hereby represents and warrants to the Company that he/she has not executed any agreement with any other person or entity which purports to require the Employee to assign any Work, or any Invention created, conceived, or first reduced to practice by the Employee on or after the Effective Date.

4. Company Information:

(a) All Company Information and all physical embodiments thereof are confidential and are and will remain the sole and exclusive property of the Company. Except to the extent necessary to perform the duties assigned to him/her by the Company, the Employee will hold such Company Information in trust and in strictest confidence and will not use, reproduce, distribute, disclose or otherwise disseminate the Company Information or any physical embodiments thereof (except on behalf of the Company or its Affiliates), or take any action causing, or fail to take the action necessary in order to prevent, any Company Information to lose its character or cease to qualify as Company Information.

(b) Upon request by the Company, and in any event upon termination of the Employee's services for any reason, the Employee will promptly deliver to the Company all property belonging to the Company, including without limitation, all Company Information (and all physical embodiments thereof) then in his/her custody, control, or possession.

(c) The Employee's obligations contained in this Section 4 shall apply during the period in which the Employee is employed by the Company and shall continue and be maintained:

- (1) with respect to Company Information that constitutes Trade Secrets, at all times after the termination of the Employee's employment for any reason whatsoever, and
- (2) with respect to any other Company Information, at all times following the termination of the Employee's employment for any reason whatsoever until such Company Information is no longer reasonably considered by the Company to be confidential or proprietary or is no longer legally subject to protection.

(d) Notwithstanding anything to the contrary in this Agreement, the parties understand and agree that pursuant to the Defend Trade Secrets Act of 2016, 18 U.S.C. §1833, an individual may not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that (1) is made in confidence to a federal, state, or local government official, either directly or indirectly, or to an attorney, and solely for the purpose of reporting or investigating a suspected violation of law, or (2) is made in a complaint or other document filed under seal in a lawsuit or other proceeding. In addition, an individual who files a lawsuit for retaliation by an employer for reporting a suspected violation of law may disclose the employer's trade secrets to the individual's attorney and use the trade secret information in the court proceeding if the individual files any document containing the trade secret under seal and does not disclose the trade secret, except pursuant to court order.

5. Covenant Not To Compete: The Employee agrees that during the period in which the Employee is employed by the Company and for a period of two (2) years thereafter, the Employee will not (except on behalf of the Company or its Affiliates), directly or indirectly, on the Employee's own behalf or in the service of or on behalf of any other individual or entity, engage in any Competitive Business Activities in the Territory, or own, legally or beneficially, directly or indirectly, any interest (whether equity, debt or otherwise) in a Competing Business in the Territory.

6. Covenant Not To Solicit Customers and Suppliers: The Employee agrees that during the period in which the Employee is employed by the Company and for a period of two (2) years thereafter, the Employee will not (except on behalf of the Company or its Affiliates), directly or indirectly, on the Employee's own behalf or in the service of or on behalf of any other individual or entity, (a) solicit or attempt to solicit for a Competing Business any Company Customer or Supplier (as hereinafter defined), or (b) accept any work or order from any such Company Customer or Supplier. As used in this paragraph, "Company Customer or Supplier" means (a) any customer or supplier of the Company or any of its Affiliates with which the Employee conducted business, from which the Employee solicited business, or to which the Employee sold or provided any services or products on behalf of the Company or any of its Affiliates, (b) any customer or supplier of the Company or any of its Affiliates as to which the Employee possesses Company Information, and (c) any prospective customer or supplier of the Company or any of its Affiliates to which Employee made or participated in a presentation or proposal for the purpose of soliciting business for or on behalf of the Company or any of its Affiliates at any time during the six (6)-month period prior to the termination of his/her employment or as to which the Employee possesses Company Information.

7. Covenant Not To Solicit Employees or Independent Contractors: The Employee agrees that during the period in which the Employee is employed by the Company and for a period of two (2) years thereafter, the Employee will not (except on behalf of the Company or its Affiliates), directly or indirectly, on the Employee's own behalf or in the service of or on behalf of any other individual or entity, solicit or attempt to solicit, to or for any individual or entity which is engaged in a Competing Business in the Territory, any person employed or engaged as an independent contractor by the Company with whom the Employee had contact during the two (2) year period prior to the termination of such employee's employment or independent contractor's engagement for any reason whatsoever, whether such employee is a full-time, part-time or temporary employee of the Company, whether or not such independent contractor is engaged solely by the Company, whether or not such employee or independent contractor is employed or engaged pursuant to a written agreement, and whether or not such employee or independent contractor is employed or engaged on an at-will or fixed-term basis. This Section 7 shall also prohibit the solicitation of non-employees of the Company who perform sales and managerial services for the Company on a contract basis in the same manner as it prohibits the solicitation of the Company's employees.

8. Remedies: The Employee agrees that Employee has had the opportunity to consult with and be advised by legal counsel concerning the reasonableness and propriety of the covenants contained herein and Employee agrees that the covenants contained in Sections 4, 5, 6, and 7 of this Agreement constitute the essence of this Agreement; that each of such covenants is reasonable and necessary to protect and preserve the interests and properties of the Company; and that irreparable loss and damage will be suffered by the Company should the Employee breach any of such covenants. Therefore, the Employee agrees and consents that, in addition to all the remedies provided at law or in equity, the Company shall be entitled to a temporary restraining order, and temporary and permanent injunctions, to prevent a breach or contemplated breach of any of the covenants. The existence of any claim, demand,

action, or cause of action of the Employee against the Company shall not constitute a defense to the enforcement by the Company of any of the covenants or agreements set forth in this Agreement.

9. Severability: The parties agree that each of the provisions included in this Agreement is separate, distinct, and severable from the other and remaining provisions of this Agreement, and that the invalidity or unenforceability of any Agreement provision shall not affect the validity or enforceability of any other provision or provisions of this Agreement. The parties agree that if a court of competent jurisdiction finds any portion of this Agreement to be overbroad or excessive in terms time, geography or restricted activities, the court may limit the Agreement to render it reasonable and enforceable in light of the circumstances in which it is made and specifically enforce the Agreement as so limited.

10. Assignment: This Agreement and the rights and obligations of the Company hereunder may be assigned by the Company and shall inure to the benefit of, shall be binding upon, and shall be enforceable by any such assignee. This Agreement and the rights and obligations of the Employee hereunder may not be assigned by the Employee.

11. Change in Position or Compensation: This Agreement will apply to any future positions Employee may hold at the Company, affiliate, or at any other subsidiary, successor or assign of the Company to which Employee may be assigned, and it will continue to apply notwithstanding any changes in Employee's job duties or compensation. Consequently, all references herein to the "Company" apply equally to any such entities by which Employee may be employed.

12. Waiver: The waiver by the Company of any breach of this Agreement by the Employee shall not be effective unless in writing, and no such waiver shall operate or be construed as a waiver of the same or another breach on a subsequent occasion.

13. Governing Law, Jurisdiction and Venue: This Agreement shall be governed by and construed as to both substantive and procedural matters in accordance with the laws of the State of Florida, without reference to its conflicts of law rules. The parties agree that the exclusive jurisdiction and venue of any dispute or claim between the parties arising out of or related to this Agreement or the negotiation or execution thereof, shall be in the appropriate state or federal courts sitting in Hillsborough County, Florida. By the execution and delivery of this Agreement, the parties hereto consent to the personal jurisdiction of such courts with regard to any such legal action or proceeding, waive any right to claim that such forum is inconvenient.

14. Entire Agreement; Amendment: This Agreement embodies the entire understanding of the parties with respect to the subject matter hereof and supersedes any and all prior or contemporaneous understandings, agreements, negotiations and discussions of the parties in connection therewith. No amendment or modification of this Agreement shall be valid or binding upon the Company or the Employee unless made in writing and signed by the parties hereto.

15. Term of Agreement and Return of Materials: This Agreement shall remain in force during the period in which the Employee is employed by the Company and for a period of two (2) years following the termination of the Employee's employment for any reason. The provisions of this Agreement relating to the protection of Trade Secrets shall survive thereafter for so long as such Trade Secrets remain entitled to trade secret protection under applicable law. Upon termination of the Employee's employment for any reason, the Employee shall return all Materials in his/her possession, custody, or control to the Company, whether or not such Materials contain Company Information. During the term of this Agreement and for a period of two (2) years thereafter, the Employee shall provide a copy of this Agreement to any Competing Business with which the Employee seeks employment, by which the Employee is employed, or for which the Employee performs any business or other services.

16. Employee Claim of Breach by Company Not a Defense: The provisions of the Agreement are, and shall be construed as, independent covenants, and no claimed or actual breach of any contractual or legal duty by the Company shall be used as a defense, excuse or a reason to terminate Employee's obligations under this Agreement or

preclude the Company from obtaining injunctive relief for Employee's violation, or threatened violation, of any of those provisions.

17. WAIVER OF RIGHT TO JURY TRIAL: BY SIGNING BELOW, BOTH PARTIES AGREE THAT ANY DISPUTE ARISING OUT OF THE RELATIONSHIP BETWEEN THEM AT ANY TIME (INCLUDING, BUT NOT LIMITED TO, ANY DISPUTE RELATED TO THIS AGREEMENT, EMPLOYEE'S EMPLOYMENT WITH THE COMPANY, EMPLOYEE'S HIRING, TERMINATION, SEPARATION FOR WHATEVER REASON, DISCIPLINE, PROMOTION, DEMOTION, OR PAY, ETC.) SHALL BE HEARD EXCLUSIVELY BY A JUDGE AND WITHOUT A JURY. BOTH PARTIES EXPRESSLY AFFIRM THAT THEY HAVE KNOWINGLY AND WILLINGLY WAIVED ANY RIGHT TO HAVE A JURY DECIDE ANY DISPUTE BETWEEN THEM AT ANY TIME. EMPLOYEE ACKNOWLEDGES AND AGREES THAT HE/SHE HAD AMPLE OPPORTUNITY TO REVIEW THIS AGREEMENT AND JURY WAIVER, INCLUDING WITH ANYONE OF EMPLOYEE'S CHOOSING (INCLUDING COUNSEL), AND THAT EMPLOYEE HAS VOLUNTARILY CHOSEN TO AGREE TO THE TERMS AFTER DUE CONSIDERATION AND WITHOUT ANY DURESS.

IN WITNESS WHEREOF, the Company and the Employee have executed and delivered this Agreement as of the Effective Date.

NFM&J, LLC - THE FACILITIES GROUP

By: Jeff Hawkins
Jeff Hawkins – **Chief Sales Officer**

EMPLOYEE

Timothy Semenza
Timothy Semenza - **Individually**